



File No.: EXP202212827

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant), against the resolution issued by the Director of the Spanish Agency for Data Protection, dated January 8, 2024, and based on the following:

FACTS

FIRST: On January 8, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in the sanctioning procedure EXP202212827 against B.B.B.

SECOND: By virtue of the provisions of Article 77.2 of Regulation (EU) 2016/679, of April 27, 2016, General Data Protection Regulation, the now appellant was informed, in their capacity as complainant, of the conclusion of the procedure initiated as a result of their complaint.

THIRD: On April 3, 2024, the appellant filed a recourse for reconsideration against the resolution issued in file EXP202212827, expressing disagreement with the contested resolution.

LEGAL GROUNDS

I

Competence

As a preliminary matter, it should be noted that the new document submitted by the appellant has not been classified as a recourse for reconsideration. However, subsection 2 of Article 115 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), establishes that the error or absence of classification of the recourse by the appellant shall not hinder its processing, provided that its true nature is deduced; therefore, the submitted document will be processed as a recourse for reconsideration.

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Grounds for inadmissibility

In accordance with the provisions of Article 62.5 of the LPACAP, the appellant lacks the status of interested party in the sanctioning procedure, as it stipulates that the filing of a complaint does not, by itself, confer the status of interested party in the procedure. Likewise, by virtue of Article 116 b) of the LPACAP, the lack of standing of the appellant constitutes grounds for inadmissibility of the recourse. In this regard, the Supreme Court, in its Judgment of November 26, 2002, stated that “the complainant neither holds a subjective right to obtain a sanction against the accused, nor can a legitimate interest be recognized for their complaint to prosper, rights and interests that are the prerequisites that configure standing, according to Article 24.1 of the Constitution and Article 31 of Law 30/92, without arguments referring to correcting irregularities or preventing them in the future, or the moral satisfaction that the sanction would entail, or the investigation of the facts, being valid as supporters of that interest (...)”

Furthermore, according to the Supreme Court Judgment of October 6, 2009 (Rec. 4.712/2005), “(...) the complainant lacks the status of interested party in the sanctioning procedure that may be initiated as a result of their complaint, since neither the LOPD nor its implementing regulation recognizes that status.”

Regarding the general principles of sanctioning administrative law, the aforementioned judgment of October 6, 2009 continues, “The crucial argument in this matter is that the complainant, even when considering themselves a “victim” of the reported infringement, does not have a subjective right or a legitimate interest for the accused to be sanctioned. The punitive power belongs solely to the Administration that has been entrusted with the corresponding sanctioning authority – in this case, the Spanish Agency for Data Protection – and consequently, only the Administration has a legally protected interest in the sanctioning of the infringer.”

In view of the cited provisions and others of general application, the Director of the Spanish Agency for

Data Protection RESOLVES:

FIRST: TO DISMISS the recourse for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection dated January 8, 2024, in the sanctioning procedure EXP202212827.

SECOND: TO NOTIFY this resolution to A.A.A.

Against this resolution, which concludes the administrative process, a contentious-administrative appeal may be filed within two months from the day following the notification of this act, in accordance with the provisions of Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and subsection 5 of the fourth additional provision of the aforementioned Law.

1313-061023

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